



MANAGED SERVICE AGREEMENT

SECURITY MANAGED SERVICE (FortiGate 40F Enterprise Plan 24x7)

Between

PROSETH SOLUTIONS Co., Ltd.

“Supplier”

And

MAP ACTIVE (CAMBODIA) CO., LTD

“Purchaser”

Quotation Number: R5R2H9



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KINGDOM OF CAMBODIA
NATION RELIGION KING



MANAGED SERVICE AGREEMENT
(ENTERPRISE PLAN 24x7)

This Managed Service Agreement (hereinafter referred to as the “Agreement”) is made and entered into on 06-Oct-2023 (referred to as the “Effective Date”) by and between:

PROSETH SOLUTIONS CO., LTD., a private limited company duly incorporated under the laws of the Kingdom of Cambodia, having the commercial registration number 00006839 dated 20 of September 2013, having VAT registration number K009-105020931, and its building address at #25F Borey Sorla, Street 371, Orkide Village, Sangkat Ou Baek K'am, Khan Sen Sok, Phnom Penh, Kingdom of Cambodia, duly represented by **Mr. SAM CHINDA**, as **Technical Manager** (hereinafter, referred to as “Supplier”).

And

MAP ACTIVE (CAMBODIA) CO., LTD a private limited company duly incorporated under the laws of the Kingdom of Cambodia, having the commercial registration number 1000236204 dated 02 of February 2023 having VAT registration number K003-902301485 and its address at Room 1823 Register05, 18th floor, Canadia Bank Tower, Building #315, Monivong Blvd., Corner of Ang Doung Street, Phnom Penh 120211, Cambodia duly represented by **Ms. Nguyen Ha Phuong Uyen**, as **Director** (hereinafter, referred to as “Purchaser”).

Hereinafter, **Purchaser** and **Supplier** are individually referred to as a “Party” and collectively referred to as the “Parties”.

RECITALS:

WHEREAS,

- **Purchaser** is a private limited company intended to use the security managed service offered by **Supplier** to support the company operation.
- **Supplier** agrees to provide to **Purchaser** the security managed service of **FortiGate 40F** enterprise plan features based on quantity, type and price as provided in **Quotation No R5R2H9** dated 23 of June 2023 (Hereinafter referred to as the “Managed Service”) and **Purchaser** agrees to purchase the **Managed Service** from **Supplier**, and
- **Therefore**, the Parties agree enter into the above Agreement to bind mutual and respective rights and obligations under the terms and conditions hereof.

NOW, THEREFORE, the Parties hereby agree to the terms and conditions as set out below:

1. SCOPE OF THE AGREEMENT

- 1.1.** **Supplier** agrees to provide, and **Purchaser** agrees to purchase the **Managed Service** with hardware “**FortiGate 40F**” as specified in the **Quotation No. R5R2H9** dated 23 of June 2023 (the “Quotation”), which is attached as **Annex 1**, of this Agreement.

- 1.2. **Supplier** shall provide **Purchaser** with the **Managed Service** for a period of 02 (two) years, commencing from **Delivery Order date (DO date)** as agreed under this Agreement ("**Managed Service Period**").

2. PRICE & PAYMENT TERMS

- 2.1. The total amount of the purchase price of the **Managed Service** is **USD 3,025.00** (Three Thousand Twenty-five) United States Dollars inclusive of 10% of Value Added Tax ("**VAT**") (the "**Total Purchase Price**").
- 2.2. **Purchaser** shall pay the total amount of the **Purchase Price** in following phases (referred to as the "**Annually Payment**") as show below:
- a) **First Payment:** **Purchaser** shall pay the amount of **USD 1,512.5** (One Thousand Five Hundred Twelve United States Dollars and five Cents), which is equivalent to 50% (fifty) percent of the **Total Purchase Price** to **Supplier** after 14 (fourteen) days the Parties have signed this Agreement and **Purchaser** has received a correct and official invoice issued by **Supplier**.
 - b) **Last Payment:** **Purchaser** shall pay the amount of **USD 1,512.5** (One Thousand Five Hundred Twelve United States Dollars and five Cents), which is equivalent to 50% (fifty) percent of the **Total Purchase Price** to **Supplier** after **Supplier** completed 01 (one) year of service and within 14 (fourteen) days after the Parties signed the summary report and **Purchaser** has received a correct and official invoice issued by **Supplier**.
- 2.3. **Purchaser** shall pay the managed service fee in advance before **Supplier** provides the managed service. **Purchaser** shall request or notify in writing as soon as possible to **Supplier** in advance in case **Purchaser** has the difficulties of making the payment to **Supplier**.
- 2.4. In the event **Purchaser** has no willing to negotiate about the overdue payment and bad debts, **Supplier** has the right suspend an/or stop to provide the service and product to **Purchaser**.

3. DEPOSIT

- 3.1. If **Purchaser** pays the service in full for 01 (one) year, **Supplier** shall not be required **Purchaser** to make the Deposit.
- 3.2. If **Purchaser** pays the service on a semester, quarterly, or monthly, **Supplier** shall require **Purchaser** to make a deposit of 03 (three) months.

4. RIGHTS AND OBLIGATIONS OF PURCHASER

- 4.1. **Purchaser** shall pay the **Purchase Price** to **Supplier** in timely manner as agreed in clause 2 of this Agreement.
- 4.2. **Purchaser** shall pay the service fee in advance before **Supplier** provides the service.
- 4.3. **Purchaser** has to responsible for any damage during the term of this Agreement (including any Act of God accident such as Natural Disaster and any inattentive act by **Purchaser**).
- 4.4. **Purchaser** shall not be responsible for any device that does not bear **Supplier's** Seal Sticker, or for any Seal Sticker damage.
- 4.5. **Purchaser** shall be advised to keep equipment in an air-conditioned, dust and moisture free environment with a suitable voltage regulator or UPS for protection and safety of the equipment.

5. RIGHTS AND OBLIGATIONS OF SUPPLIER

- 5.1. **Supplier** has the right receive full payment from **Purchaser** accordance with Article 2 of this Agreement.
- 5.2. **Supplier** shall keep confidential all the documents and information relating to **Purchaser** but shall not distribute or release any such information to any third pay without the authorization of **Purchaser**.
- 5.3. **Supplier** shall be responsible perform all the terms and obligations as mentioned in this Agreement and its annexure.
- 5.4. **Supplier** shall be responsible for any device that does not bear **Supplier's** Seal Sticker, or for any Seal Sticker damage.
- 5.5. **Supplier** is responsible for performing its obligations on time and at the request of **Purchaser** as a signed contract. Quickly resolve Purchase's complaints about service quality within the scope of **Supplier's** responsibility.

6. SCOPE OF SERVICE

Supplier has agreed to provide the service to **Purchaser** from the date of got payment from **Purchaser** with service below:

- Security Managed Service 24x7 of 40F Enterprise Plan Features:
- FortiGate Device 40F= 1Unit
- UTM License
- Instance Hardware Replacement
- Professional Deployment with Security Best Practice
- Forti Analyzer Report with recommendation
- Security Fabric, Automation, Email Alert
- Security Incident Investigation
- Log Analytics, Monitoring, Discussion and Recommendation
- 6 Months Hardware Physical Maintenance
- 6 Months Technology Update/Training
- Onsite Engineer Hardware Replacement
- Service Level Agreement 24x7
- Ongoing Configuration assistance "

7. SERVICE LEVEL AGREEMENT

Supplier will provide the basic support to solve some issues which cover based on support scope as mentions below:

- Coverage: 24x7
- Response time call log: 30 minutes after call log (Maximum)
- On-site support: 2 hours after call log
- Supplier agrees to provide on-site hardware delivery: 4 hours if hardware is evaluated as cannot be fixed.

- Supplier shall Restore Configuration for Purchaser and make sure the replace device is running properly in operation.
- After the replaced hardware is running in operation normally, Supplier will take the fault device back.

8. TECHNICAL SUPPORT ASSISTANT OF SUPPLIER

- Hotline : (+855) 77 626 048 / (+855) 69 302 018
- SOC NOC : (+855) 77 626 048
- H/P : (+855) 23 98 21 27
- E-mail : support@prosethsolutions.com

9. OFFICIAL CONTACTS FOR SERVICE AND SUPPORT

1- Ms. Voleak He

- Position: Sale Executive
- H/P : (+855) 96 990 9 990
- E-mail : sale16@prosethsolutions.com

2- Mr. Mony Thavy (No response after 4 hours)

- Position: Customer Service Supervisor
- H/P : (+855) 96 757 4728
- E-mail : mthavy@prosethsolutions.com

3- Mr. Sam Chinda (No response after 12 hours)

- Position: Technical Manager
- H/P : (+855) 99 550 258
- E-mail : schinda@prosethsolutions.com

10. TERMINATION

- 10.1. This Agreement shall be terminated by its term where the Parties have completely performed all their obligations as stipulated in this Agreement or can be terminated before the due date if there is a mutual agreement by both Parties. In the event that either Party wishes to terminate the service prior to the expiration of the valid Agreement time, that party shall notify to the other party 03 (three) months and shall pay the remaining amount of the service to other party within 07 (seven) working days.
- 10.2. Except any termination provided by this Agreement, after signing this Agreement by both Parties, **Both Parties** shall not terminate the Agreement prior the validity period of this Agreement. If a **Parties** wishes to terminate the Agreement, **that Party** shall notify in writing to the **other Party** 03 (three) months prior, At that time, any duly unpaid amount will be due immediately, the party obligated to pay shall make payment of the entire amount outstanding at the time of termination of this contract.
- 10.3. Either Party at any time be entitled, but not required, to terminate this Agreement with immediate effect in any of the following events:

- a) Either Party not long has or no longer qualified to have licensed, permits, authorizations, or approvals which are required to carry out its obligations, hereunder or to operate its business in Cambodia and in any country.
- b) Either Party becomes insolvent and/or is subject to criminal proceedings or civil proceedings including, but not limited to, a petition for insolvency, bankruptcy, or liquidation filed by any party with a court having competent jurisdiction.

10.4. Either Party hereby expressly agrees that in the event that this Agreement is terminated for the reasons set forth in clause 9.3 of this Agreement, neither party shall be entitled to make any claims against the other.

11. GENERAL TERMS AND CONDITIONS

11.1. NOTICES

11.1.1. All notices, demands or other communications required or permitted to be given or made between the Parties under this Agreement or related to this Agreement shall be in writing, signed by or in the name of the Party who gives notice. The delivery of the notices shall be made by personally, by courier, by postal service, by fax or e-mail addressed to the intended recipient thereof at its address or facsimile set out below (or to such other address or facsimile number as may be notified by any Party to the other Party from time to time).

11.1.2. Notices to Supplier shall be sent to:

Address : #25F (Borey Sorla), Street 371, Orkide Village, Sangkat Ou
Back K'am, Khan Sen Sok, Phnom Penh, Cambodia.
H/P : (+855) 23 982 127
Email : info@prosethsolutions.com
Representative : Mr. Sam Chinda
Position : Technical Manager

11.1.3. Notices to Purchaser shall be sent to:

Address : Room 1823 Register05, 18th floor, Canadia Bank Tower,
Building #315, Monivong Blvd., Corner of Ang Doung Street,
Phnom Penh 120211, Cambodia
H/P : +84 932 080 529
Email : uyen.nguyenhaphuong@mapactive.vn
Representative : Ms. Nguyen Ha Phuong Uyen
Position : Director

11.1.4. The Parties may at any time change the name or the address at which notice is to be given, by providing written notification of such change.

11.2. NO HIRING

Both Party shall not employ directly or indirectly any of the other party's staffs providing the service for a period of 01 (one) year following the termination of this Agreement without prior written agreement from the other Party.

12. FORCE MAJEURE

12.1. Neither Party shall be liable to compensate the other Party for non-performance or deemed as having breached this Service Level Agreement, in part or in whole, as a result of force majeure such as natural disaster, flood, earthquake, storm, riot, war (that is declared or non-declared), evacuation, epidemic, social unrest, pandemic, restriction made by any governmental authorities or other cases which happen beyond the Party's control ("Force Majeure Event").

12.2. Upon the occurrence of any Force Majeure Event:

- a) The affected Party shall promptly notify other Party that it is or will be affected by the Force Majeure Event and shall use its best efforts to remedy the situation as soon as practicable; and
- b) All Parties shall arrange a discussion as soon as possible to seek a reasonable time extension and exercising diligent to minimize service interruptions efforts to overcome the cause of such delay.

13. GOVERNING LAW AND DISPUTE RESOLUTION

13.1. This Agreement shall be governed and construed in accordance with the law of the Kingdom of Cambodia.

13.2. All disputes arising out of this Agreement, including interpretation, construction, validity or implementation of this Agreement, shall be settlement through amicable negotiation. In case that the disputes could not find the solution within 30 (thirty) calendar days from the date occurring the disputes, either Party may bring the disputes to settle at the competent court of the Kingdom of Cambodia.

14. SEVERABILITY

If any part of this Agreement is found by a court of competent jurisdiction or other competent authority to be void or unenforceable, such provision shall be deemed deleted from this Agreement and the remaining provisions of this Agreement shall continue in full force and effect.

15. ENTIRE AGREEMENT

This Agreement and its annexes constitute the entire agreement and understanding between the Parties with respect to its subject matter and replace and supersedes all prior agreements, arrangements, undertakings, or statements regarding such subject matter.

16. AMENDMENT

No amendment, modification, variation, or supplement of this Agreement shall be effective unless made in writing and signed by or on behalf of the Parties.

17. LANGUAGE AND ANNEXURE

17.1 This Agreement is made in 03 (Three) copies in English. The Parties hereto have thoroughly read, examined, and understood this Agreement and have agreed to sign it in accordance with their intentions. Each Party will keep on duly copy.

17.2 All Annexure between **Purchaser** and **Supplier** with the Parties' company stamp shall be an integral and supplementary part of this Agreement. Any amendment hereto must be in writing and signed by both Parties.

18. COUNTERPARTS

This Agreement may be executed in counterparts in the same form and such parts so executed shall together form one original document and be read and construed as if one copy of the Agreement had been executed.

19. BINDING EFFECT

This Agreement shall bind and inure to the benefits of the Parties hereto and their respective successors, transferee and/or assigns.

IN WITNESS WHEREOF, the Parties hereby acknowledge and agree to the terms and conditions of this Agreement and have affixed their signatures and company's stamp below on the date first mentioned above.

FOR SUPPLIER
PROSETH SOLUTIONS CO., LTD.
by its authorized representative
Signature and Company's Stamp

FOR PURCHASER
MAP ACTIVE (CAMBODIA) CO., LTD
by its authorized representative
Signature and Company's Stamp

Name: Mr. Sam Chinda
Title: Technical Manager

Name: Ms. Nguyen Ha Phuong Uyen
Title: Director

ANNEX 1

Quotation No: R5R2H9 (Dated 23 June- 2023)



Address: #23F, 25F (Borey Sorla), Street 371, Orkide Village, Sangkat OuBaek K'am, Khan Sen Sok, Phnom Penh, Cambodia.
Tel: (855) 23 982 127

Quotation

Quotation #: R5R2H9
Quotation Date: 23-Jun-2023
Validate: 30-Jun-2023
Sale Rep: Sale16

Sold To:

MAP ACTIVE (CAMBODIA) CO., LTD
Address: Room 1823 Register05, 18th floor, Canadia Bank Tower, Building #315, Monivong Blvd., Corner of Ang Doung Street, Phnom Penh 120211, Cambodia
Attn: Ms. Nguyen Ha Phuong Uyen
Tel: +84 932 080 529

Ship To:

MAP ACTIVE (CAMBODIA) CO., LTD
Address: Room 1823 Register05, 18th floor, Canadia Bank Tower, Building #315, Monivong Blvd., Corner of Ang Doung Street, Phnom Penh 120211, Cambodia
Attn: Ms. Nguyen Ha Phuong Uyen
Tel: +84 932 080 529

No	P/N	Description	Qty	Unit Price	Total
FG-40F Managed Service 2 Years					
1	FG-MS-40F-E	FortiGate Managed service Service coverage: - FortiGate Device 40F x1 unit - UTM License - Instance Hardware Replacement - Professional Deployment with Security Best Practice - FortiAnalyzer Report with recommendation - Security Fabric, Automation, Email Alert - Security Incident Investigation - Log Analytics, Monitoring, Discussion and Recommendation - 6 Months Hardware Physical Maintenance - 6 Months Technology Update/Training - Onsite Engineer Hardware Replacement - Service Level Agreement 24x7 - Ongoing Configuration assistance *** Warranty: 2 years *** Lead Time: In stock *** Price Validate: 30-Jun-2023	24	\$ 119.31	\$ 2,863.44
2	Discount	Special discount	1	-\$ 113.44	-\$ 113.44
Payment Term: Advance Yearly Payment Lead Time: Based on the items mentioned after the deposit Warranty: Based on the items mentioned ** This quotation excluded withholding tax.			Sub-Total		\$ 2,750.00
Noted: PO is cancelled after confirmation, full payment must be honored by the customer.			VAT(10%)		\$ 275.00
			Total Amount		\$ 3,025.00

Note: Customer hereby agrees to accept the delivery of the products as soon as they arrive at our office, but no later than 05 working days after receiving the delivery status update from our staff. If the customer wishes to keep it at our warehouse for more than 05 working days, a warehouse charge of 0.5% percent of the value amount per day shall be applied.

Signature

Voleak H.

Customer's Signature

MAP ACTIVE (CAMBODIA) CO., LTD
KINGDOM OF CAMBODIA